

Saltmarsh Environmental Partners LLC

www.saltmarshenv.com

May 15, 2015

Sandra Little
Director of Operations
Dyer and Sons

Re: Wetland delineation, Dyer and Sons parcel

Dear Ms. Little:

Thank you for your inquiry regarding the parcel. This letter sets out the terms on which Saltmarsh Environmental Partners LLC will perform a wetland delineation for Dyer and Sons, and asks for your countersignature. It is longer than our conversation was, on purpose. Once it is signed it is the agreement, and I would rather you read a dull page now than discover a surprise in it later.

Scope and Approach

We will delineate the wetland boundary on the parcel in accordance with the 1987 Corps of Engineers Wetlands Delineation Manual and the applicable regional supplement. The method rests on three parameters: hydrology, hydric soils, and hydrophytic vegetation. Each is examined at paired sample points, one inside the apparent wetland and one outside it, and each point is documented on a routine data form. Soil pits are excavated deep enough to observe the redoximorphic features that decide the soils question, and the profile is described rather than summarized.

The boundary will be flagged in the field with sequentially numbered flagging and the flag positions located by sub-meter GPS. Where the flagging crosses a ditch, a berm, or fill of uncertain age, the position will be tied to a photograph and to a note describing what was there. The estuarine fringe on this reach is not a clean line on the ground, and the file should say so where it is true.

The line will be walked twice. The second pass is not a formality and it is not a spot check of the new work; it is a full second pass over the whole boundary, and in our experience it moves a flag often enough to be worth the field day it costs. We will also review the historical aerials, the mapping, the county soil survey, and any prior permit record for the parcel before the first sample point is established. Background

work of that kind is cheaper than a surprise, and where the record is silent we will report it as silent rather than fill the gap with a plausible inference.

Site access is your responsibility and the schedule depends on it. We will not enter the parcel without written authorization from your office, and we will ask for tenant notification to be handled before rather than during a field day. A delay in access moves the field schedule day for day. We will tell you when that happens instead of absorbing it and explaining it later.

You will receive a delineation report with a figure set, the data forms, and the photograph log. The report will state what was measured, where, and on what date. Where an indicator is ambiguous, the report will say that it is ambiguous. You should know at the outset that a delineation is a professional opinion supported by evidence. It is not a permit and it is not a determination. The Corps and the state make the determination; we tell you what we found and how far the evidence carries. Our confidence in a tidal fringe walked in a wet spring is not the same as our confidence in August, and any report we sign will make that distinction visible.

Team

John Sanchez, Senior Scientist, will lead the delineation and will walk the line himself. He has done this work on this estuary for long enough to know which indicators argue and which ones settle it. Angela Williams and Mary Foster, both Field Technicians, will support the field effort, the data forms, and the record that a monitoring condition would require if the permitting takes that turn. I review every deliverable before it leaves this office, including the numbers, and I ask where each of them came from.

Fees and Payment

Our fee for the work described above, together with the treatment of reimbursable expenses, is set out on the signature page prepared by counsel. Nothing in this letter changes it. Invoices are issued monthly against work performed and are payable on receipt. The engagement term commences May 25, 2015, subject to your countersignature and to our having access to the parcel. If access is delayed, the schedule moves with it and we will tell you promptly rather than absorb the delay quietly.

Term and Termination

The engagement runs from the commencement date stated above until the delineation report has been delivered and any agency comments on it have been addressed. Either of us may terminate on written notice. If you terminate, you owe

us for work performed through that date and for commitments we cannot cancel. If we terminate, we will deliver the field data in whatever condition it is in, along with the forms and photographs. The data is yours. We have never held a field notebook hostage and do not intend to start.

Confidentiality

We will hold in confidence the information you provide and the findings we develop, and will not disclose either except to our own staff, to a subconsultant retained with your knowledge, or where a regulator or a court compels it. Two exceptions are worth stating plainly. First, a delineation submitted to an agency becomes part of a public record; that is what submitting it is for. Second, we cannot conceal a condition that the law requires be reported. If such a condition is found, we will tell you before we report it, so far as we are permitted to.

Limitation of Liability

Our work is limited to the parcel and to the conditions observable during the field effort described here. Estuarine boundaries move, and a wetland line is a photograph of a moving thing. An approved delineation is generally treated by the agencies as current for five years, and less than that if conditions change or the manual is superseded. We do not warrant that any agency will concur with our line. Our liability arising out of this engagement is limited to the fee paid for the work, as stated on the signature page. We carry professional liability insurance and will furnish a certificate on request.

Governing Law

This agreement is governed by the law of the state in which the parcel lies, without regard to its conflict of laws provisions. Any dispute that we cannot resolve between ourselves will be submitted to mediation before either party files anything anywhere.

If these terms are acceptable, please sign below and return one copy to our office, and we will begin scheduling access. If a sentence in here reads wrong to you, call me before you sign it. Fixing a sentence in May is cheap. Arguing about it in October is not.

Sincerely,

Fixed professional fee, as executed: \$94,500

Angela Flynn

Managing Principal

Date: May 15, 2015

Sandra Little

Director of Operations, Dyer and Sons

Date: May 15, 2015